

MASTER VENDOR SERVICES AGREEMENT

Between Apex Logistics Solutions ("Vendor") and Customer · Effective Feb 1, 2026

1. Term and Renewal

This Agreement shall automatically renew for successive twenty-four (24) month terms unless Customer provides written notice of non-renewal no less than ninety (90) days prior to the end of the current term. Failure to provide timely notice binds Customer to the full successive term.

2. Fees

Vendor reserves the right to increase fees by up to fifteen percent (15%) annually at its sole discretion upon thirty (30) days notice, and Customer shall have no right to terminate as a result of such increase.

3. Limitation of Liability

Vendor's total liability under this Agreement shall not exceed one hundred dollars (\$100), regardless of the form of action. Vendor disclaims all liability for any damages whatsoever, including direct damages arising from its own negligence.

4. Indemnification

Customer shall indemnify, defend, and hold harmless Vendor against any and all claims, including those arising from Vendor's own negligence or willful misconduct, without limitation.

5. Termination

Vendor may terminate this Agreement at any time, for any reason or no reason, upon five (5) days notice. Customer may terminate only for Vendor's material uncured breach after a ninety (90) day cure period.

6. Exclusivity

During the term, Customer shall not engage any third party for services similar to those provided by Vendor, and shall purchase all such services exclusively from Vendor.

7. Governing Law and Venue

This Agreement shall be governed by the laws of a jurisdiction to be designated by Vendor at the time of any dispute, and Customer waives any objection to venue or forum.